H.B. 3, 2025.]

PIPELINES AMENDMENT BILL, 2025

MEMORANDUM

This Bill amends the Pipelines Act [*Chapter 13:08*] in order to ensure maximum protection of the pipelines by prohibiting all activities within the pipeline reserve, imposing stiffer penalties and providing for the inspection and maintenance of the pipeline reserve.

In more detail, the individual clauses of the Bill provide as follows:

Clause 1

This clause sets out the Bill's short title.

Clause 2

This clause provides for the definition of the term "Minister".

Clause 3

This clause seeks to introduce additional prohibited activities along the servitude of the pipeline, such as digging, construction of buildings and structures. It also provides for the introduction of stiffer penalties for carrying out prohibited activities along the servitude of the pipeline. Currently the Act provides for level 4 fine or 3 months imprisonment. The Bill proposes to increase the penalty to level 10 fine or a term of imprisonment not exceeding 6 years. Subsection (4) of this clause also provides that the penalty for causing or attempting to cause damage to the pipeline shall be increased from level nine fine or four years imprisonment to level 14 or 10 years imprisonment.

Clause 4

This clause provides for the inspection and maintenance of the pipeline reserve by the grantee's employees or agent in terms of this Act.

Clause 5

This clause seeks to introduce a new section which will empower the Minister to make regulations.

BILL

TO amend the Pipelines Act [*Chapter 13:08*] and to provide for matters connected therewith or incidental thereto.

ENACTED by the Parliament and the President of Zimbabwe.

1 Short title

This Act may be cited as the Pipelines Amendment Act, 2025.

2 Amendment of section 2 of Cap. 13:08

Section 2 (Interpretation) of the Pipelines Act (hereinafter called the principal Act) is amended by the deletion of "Minister" and the substitution of "Minister" means the Minister responsible for Energy or any other Minister to whom the President may from time to time, assign the administration of this Act."

3 Amendment of section 6 of Cap. 13:08

Section 6 (Protection of land used for pipeline) of the principal Act is repealed and substituted with the following—

"(1) Subject to subsection (3), no person shall—

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(a) erect any building or structure or plant any tree within the pipeline reserve; or

(b) sink any well or borehole, dig any trench more than three hundred and seventy-five millimetres in depth or lay any pipe within the pipeline reserve.

(2) No person shall conduct any mining or blasting activity within a distance of 125 metres from either side of the centre of the pipeline.

(3) Regulations made under section 10 shall prescribe to the extent which—

(a) buildings, structure or trees may be erected;

(b) wells, or boreholes may be sunk or pipes laid or trenches dug;

(c) grazing, digging, ploughing, cultivating and other agricultural or pastoral activities may be conducted; within the pipeline reserve.

(4) For the avoidance of doubt, subsection (3) shall apply to agricultural related activities only.

(5) Any person who contravenes subsections (1) and (2) or any regulations made by virtue of subsection (3) shall be guilty of an offence and liable to a fine not exceeding level 10 or to imprisonment for a period not exceeding 6 years or to both such fine and such imprisonment, and on convicting any person of such offence the court may, in addition to imposing any penalty, order the removal of the building, structure, plant or pipe or the filling in of the well, borehole or trench, or the cessation of any digging and ploughing, as the case may be.

(6) Any person who causes or attempts to cause damage to—

(a) any pipeline or any pumping station or other ancillary works or installations; or

(b) any storage tanks or other ancillary works or installations connected with a pipeline for goods conveyed or to be conveyed by means of the pipeline;

shall be guilty of an offence and liable to a fine not exceeding level 14 or to imprisonment for a period not exceeding ten years or to both such fine and such imprisonment."

4 Insertion of a new section in Cap. 13:08

The principal Act is amended by the insertion after section 9 of the following—

"9A Inspections and maintenance

(1) The grantee may authorise any of its employees or agent to inspect and maintain the pipeline reserve for the purposes of this Act and shall furnish such person with an identification document for the purpose of carrying out such function.

(2) An employee or agent of the grantee shall, in addition to any other functions that may be assigned to them by the grantee, be responsible for inspecting pipeline reserve undertakings to ensure the safety of operations and to investigate accidents.

(3) Subject to subsection (7), an employee, agent or a police officer may at all reasonable times enter or gain access to the pipeline servitude—

(a) which is located within private property; or

(b) where he or she has reasonable cause to suspect an offence against this Act has been committed;

and shall have power to make such examination, inspection and inquiry and do such things as may appear to him or her necessary for ascertaining whether compliance has been made with this Act.

(4) The powers of entry and inspection conferred by this section shall only be exercised with the consent of the person in charge of the private property concerned, unless there are reasonable grounds for believing that it is necessary to exercise them for the prevention, investigation or detection of an offence in terms of this Act or for the obtaining of evidence relating to such an offence or for the prevention or curtailment of conditions that may have an adverse effect on the pipeline.

(5) An employee, agent of the grantee or police officer may, in the exercise of the powers conferred upon him or her by this section, seize any equipment or apparatus which he or she has reasonable cause to suspect will afford evidence of the grantee of an offence against this Act and may retain it for so long as may be necessary for the purpose of any examination, investigation, trial or inquiry.

(6) An employee or agent of the grantee may, in the exercise of the powers conferred upon him or her by this section, order a person referred to in subsection (5) to cease any activity, pending investigations by the grantee, which is not in accordance with this Act.

(7) An employee or agent of the grantee shall, on demand by any person affected by the exercise of the powers conferred upon him or her by this section, exhibit the identification document issued to him or her in terms of subsection (1).

(8) Any person who—

(a) obstructs or attempt to obstruct; or

(b) refuses to comply with;

an employee or agent during the employee's or agent's lawful exercise of his or her functions in terms of this Act shall be guilty of an offence and liable to a fine not exceeding level 10 or to imprisonment for a period not exceeding six years or to both such fine and such imprisonment."

5 Insertion of a new section in Cap. 13:08

The principal Act is amended by the insertion after section 9 of the following—

"10 Regulations

(1) The Minister may make regulations providing for anything which in terms of this Act is to be prescribed or which in his or her opinion is expedient or necessary or convenient to be prescribed for carrying out or giving effect to the provisions of this Act.

(2) Regulations made in terms of subsection (1) may provide for—

(a) the safeguarding of the pipeline and pipeline reserve;

(b) inspections and maintenance of the pipeline;

(c) facilitation of the registration of servitudes where pipelines cut across land used as a unit by any occupier of such land.".